

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Conway	Team: Team # 6	CCRB Case #: 201404339	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 05/03/2014 12:45 AM	Location of Incident: Opposite of 161 East 96th Street	18 Mo. SOL 11/3/2015	Precinct: 19
Date/Time CV Reported Sun, 05/04/2014 12:37 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 05/04/2014 12:37 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Oscar Wdowiak	12497	951424	023 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Lui	06380	942087	023 PCT
2. POM Michael Raleigh	21415	947377	023 PCT
3. POM Omar Aguilar	11042	949972	023 PCT
4. SGT Jorge Arancibia	00119	929645	023 PCT
5. POM Daniel Leek	26566	945913	023 PCT
6. POM Maynor Serrano	13184	934350	023 PCT
7. POM Timothy Haluska	09943	950554	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Oscar Wdowiak	Force: PO Oscar Wdowiak pointed his gun at § 87(2)(b)	A . Substantiated
B . POM Oscar Wdowiak	Abuse: PO Oscar Wdowiak questioned § 87(2)(b) and § 87(2)(b)	B . Substantiated

Case Summary

On May 4, 2014, § 87(2)(b) filed this complaint with the CCRB via the online form. She complained that the previous night around 12:45 a.m. on May 3, 2014, she and her husband § 87(2)(b) were stopped by officers of the 23rd Precinct on East 96th Street east of Lexington Avenue in Manhattan while driving home. The following allegations resulted:

Allegation A—Force: PO Oscar Wdowiak pointed his gun at § 87(2)(b)

Allegation B—Abuse of Authority: PO Oscar Wdowiak questioned § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **substantiated**.

As this case involved an allegation of gun pointed, it was ineligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old on the incident date. She is a black female who § 87(2)(b) with black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On May 4, 2014, § 87(2)(b) provided a written statement to the CCRB (encl. 4a-f), and on May 12, 2014, § 87(2)(b) was interviewed at the CCRB (encl. 7a-d). Her statements are essentially consistent and are combined below.

Around 12:30 a.m. on May 3, 2014, § 87(2)(b)'s husband, § 87(2)(b) picked her up at her client's house at § 87(2)(b) and drove eastbound across Central Park on East 96th Street towards Franklin Roosevelt Drive to go home to Brooklyn. § 87(2)(b) was driving a tan 2000 Toyota Camry with a 3''x4'' Guyanese flag hanging on a suction cup near the rearview mirror. Around 12:45 a.m., § 87(2)(b) noticed that there was a marked RMP on the opposite side of the street, which suddenly made a U-turn to pull next to § 87(2)(b)'s vehicle. Seconds later an RMP turned on lights and sirens immediately behind them and ordered § 87(2)(b) over a loudspeaker to pull over and put his hands up; simultaneously an RMP pulled from up ahead and boxed them in. At the time they were pulled over, all windows on the car were up. Both § 87(2)(b) and § 87(2)(b) put their hands up. Officers whom § 87(2)(b) later identified from video footage as PO Oscar Wdowiak and PO Omar Aguilar exited the car immediately behind them and approached her on the passenger side; officers identified by the investigation as PO Maynor Serrano and PO Timothy Haluska exited the vehicle on the left of the car and approached § 87(2)(b). Shortly after, officers whom § 87(2)(b) later identified from video footage as PO Kevin Lui and PO Michael Raleigh also approached § 87(2)(b)'s side. § 87(2)(b) could not physically describe PO Haluska and PO Serrano, and could not independently identify the officers that removed her from the vehicle due to the blinding flashlights pointed at her. § 87(2)(b) provided the following officers' descriptions, names,

shields, and tax registry numbers as she asked the officers for their information on scene. § 87(2)(b) described PO Wdowiak as a white male standing about 5'7 with an athletic build, and described PO Aguilar as Hispanic male standing about 5'5. Both PO Wdowiak and PO Aguilar were in RMP #4714. § 87(2)(b) described PO Lui as an Asian male standing about 5'6.

PO Aguilar opened § 87(2)(b)'s door and shouted, "Get out of the car." § 87(2)(b) suddenly noticed that PO Wdowiak was aiming his gun at her head. Both officers had their flashlights out also, pointing at § 87(2)(b) and into the car. § 87(2)(b) started to exit, when PO Aguilar grabbed her by the right arm just above her wrist and pulled her out. § 87(2)(b) was placed on her stomach and fully handcuffed; a minute later § 87(2)(b) was asked to get out of the car. § 87(2)(b) said, "Why are we being pulled over?" PO Aguilar said, "This car was reported stolen." From the ground, § 87(2)(b) replied, "That's impossible, both owners are here." PO Aguilar replied, "We'll see."

§ 87(2)(b) began to hyperventilate and cry due to the stress of the situation. An unidentified officer asked if she was okay and if she needed an inhaler. § 87(2)(b) said she did not need an inhaler. Two or three minutes later an officer identified by the investigation as PO Wdowiak uncuffed § 87(2)(b) and allowed her to stand up on her feet.

§ 87(2)(b) heard a conversation that § 87(2)(b) was having with two officers, identified as PO Aguilar and PO Wdowiak. § 87(2)(b) asked the officers, "Why did you run the plates?" An officer identified by the investigation as PO Aguilar replied, "Your plates were reported stolen by Michigan." § 87(2)(b) asked, "So was it Michigan plates or New York plates?" PO Aguilar responded, "New York plates reported stolen, by Michigan." An officer identified by the investigation as PO Wdowiak asked, "Did you get the plates from a dealer or DMV? Do you have a second car like a Dodge?" § 87(2)(b) replied, "These are the original plates that match the registration from a car we have had for over ten years. No, we don't have a second vehicle." § 87(2)(b) continued to ask why they ran their plates in the first place, and no officer immediately answered. § 87(2)(b) asked if the stolen plates were from Michigan and New York, and an officer that § 87(2)(b) could not identify said, "That is what we are trying to figure out." After a few minutes, PO Aguilar said that there was an obstruction on the windshield, referring to the Guyanese flag.

After being uncuffed, § 87(2)(b) called her friend who works for the NYPD, § 87(2)(b) whose contact information she declined to provide. § 87(2)(b) advised her to get badge numbers and car numbers, and told her to record the incident. § 87(2)(b) also said to report the incident to IAB and CCRB. § 87(2)(b) began to write down names and badge numbers, and noticed that the RMP that had pulled up to the left had departed, and Sgt. Jorge Arancibia (along with his partner PO Daniel Leek), had arrived in an RMP behind PO Wdowiak and PO Aguilar's RMP. PO Wdowiak asked for § 87(2)(b)'s license and registration, and § 87(2)(b) replied it was in the glove compartment and he could take it. PO Wdowiak did so, and went back to his RMP. At this point, § 87(2)(b) began recording a video on his cell phone. The video recording captures the moments around this time, and § 87(2)(b) identified PO Raleigh, PO Wdowiak, PO Aguilar, and Sgt. Arancibia in the video footage and identified what they had done during the incident.

As depicted on the video footage, PO Wdowiak issued § 87(2)(b) a summons for the obstructed view, and claimed that the reason they had run the plates was because the car had an obstructed view. § 87(2)(b) asked which officer pointed the gun at her heard. PO Wdowiak identified himself as the officer who did so. After this, § 87(2)(b) stopped recording video footage. After the summons was issued, § 87(2)(b) and § 87(2)(b) were allowed to leave. Sgt. Arancibia was the last officer to leave the scene.

§ 87(2)(b) contacted IAB around 10:00 p.m. on May 3, 2014, to ask why her car appeared to the officers as stolen. The detective who answered the phone, Det. Omar Mangual, stated he could not divulge information regarding the case or if it were New York or Michigan plates reported stolen. On May 4, 2014, § 87(2)(b) traveled to IAB to bring a DVD of the video she took and spoke to Det. Nicholas Pacheco and Sgt. Kevin Beslity. The IAB officers asked if they ever owned a 2014 Dodge Charger. § 87(2)(b) and § 87(2)(b) stated that they have had the same car for twelve years and never owned any 2014 vehicle. IAB advised them to get an abstract from the DMV, and contact Detroit PD.

On May 5, 2014, § 87(2)(b) spoke to PO Woods of the Detroit Police Department, who stated that a 2014 Dodge Charger with license plate sequence § 87(2)(b) was flagged as stolen for Michigan plates, but not for New York plates. PO Woods advised § 87(2)(b) to submit a FOIL request to National Crime Information Center (NCIC). § 87(2)(b) provided a copy of her registration (encl. 7f-h), showing that she owns a 2000 Toyota bearing New York plate § 87(2)(b).

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old on the incident date. He is a black male § 87(2)(b) with black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On May 13, 2014, § 87(2)(b) was interviewed at the CCRB (encl. 6a-d).

§ 87(2)(b)'s statement was generally consistent with § 87(2)(b)'s as to the leadup of the incident. § 87(2)(b) was driving § 87(2)(b) home from work when three marked RMPs suddenly boxed their vehicle in on East 96th Street east of Lexington Avenue, and six officers exited and surrounded their vehicle. Officers identified by the investigation as PO Wdowiak, PO Aguilar, and PO Lui ran to the passenger's side, while officers identified by the investigation as PO Raleigh, PO Serrano, and PO Haluska approached the driver's side. § 87(2)(b) described PO Raleigh as a uniformed white male with glasses, thirty or forty years old, and pointed him out on video footage. § 87(2)(b) described PO Serrano and PO Haluska both as uniformed white males, and PO Lui as a uniformed Asian male. § 87(2)(b) described PO Wdowiak as a uniformed white male around thirty-three years old, standing 5'9, with dark hair, clean shaven, and an athletic build. § 87(2)(b) pointed him out in the passenger seat of the RMP on video. § 87(2)(b) described his partner PO Aguilar, the driver, as a uniformed Hispanic male.

Upon approach, PO Wdowiak drew his gun and pointed it at § 87(2)(b)'s face, while PO Aguilar opened the door, grabbed § 87(2)(b) by the wrist and pulled her out of the car and onto the ground. § 87(2)(b) observed this all happen from the driver's seat, as he had not been asked to get out of the car yet. PO Raleigh, PO Serrano, and PO Haluska asked § 87(2)(b) to open the door and step out of the car. § 87(2)(b) lowered the window and then opened the car. An officer handcuffed him and he was led to the rear of the car; he could see that § 87(2)(b) was on the ground on her side face-down, and handcuffed. § 87(2)(b) asked, "What did we do, what's wrong?" PO Wdowiak told her to be quiet and stay down. § 87(2)(b) began crying hysterically, and seemed to have difficulty breathing. The officers got worried and asked if she had an inhaler. § 87(2)(b) said she did not have an inhaler but the situation had her exasperated. § 87(2)(b) told § 87(2)(b) to breathe and relax.

The officers questioned them for five to ten minutes, with PO Wdowiak the primary speaker; other officers were checking on the computer. PO Wdowiak and his partner questioned them about their vehicle, asking if they "have any other vehicle, such as a Dodge." § 87(2)(b) told him they have had only one vehicle, the Toyota, for twelve years. PO Wdowiak said, "You were

pulled over because your license plate was tagged in Michigan as being stolen,” and repeatedly asked things such as, “Do you have a Dodge? Did you report this stolen?” § 87(2)(b) asked how the license plate could be reported stolen if they are the only owners of the vehicle. PO Wdowiak reiterated that the computer check told them that the car was stolen in Detroit. § 87(2)(b) said that they had never been to Michigan and never reported the car stolen, but PO Wdowiak said they were “New York plates, reported stolen by Michigan.” § 87(2)(b) began to question the officers in return, asking, “What did we do? This is unfair, why are you treating us like this.” At one point while handcuffed, PO Haluska walked § 87(2)(b) to his RMP to show that the plates were popping up as stolen, and then walked him back to his own car.

Then, both § 87(2)(b) and § 87(2)(b) were uncuffed, and the officers told them to not go anywhere. Five or ten minutes later, § 87(2)(b) eventually asked why his plates were run in the first place. PO Wdowiak replied that there was an obstructed view – referring to the 3’x4’ Guyanese flag – and this was cause to pull them over in the first place. PO Wdowiak asked § 87(2)(b) for his license and registration, and § 87(2)(b) told him it was in the glove compartment. PO Wdowiak retrieved the documents from the glove compartment, and did not look or search anywhere else in the car. § 87(2)(b) asked which officer pointed a gun at her head. PO Wdowiak identified himself as the officer who had pointed his gun at her.

Around this time, the RMP on the side containing PO Serrano and PO Haluska left the scene, and Sgt. Arancibia responded to the scene, pulling up behind PO Wdowiak and PO Aguilar’s RMP. § 87(2)(b) described Sgt. Arancibia as a uniformed white male, standing 6’2 with a skinny build. § 87(2)(b) stated that Sgt. Arancibia’s operator, identified by the investigation as PO Daniel Leek, did not leave the vehicle during the incident and so he could not describe him. § 87(2)(b) used her cell phone to call her friend § 87(2)(b) who told her to record the scene and ask for names and shield numbers. § 87(2)(b) began recording his surroundings on his cell phone, while § 87(2)(b) asked the officers for their names and shields, which they provided. § 87(2)(b) showed the video that he took, depicting PO Wdowiak as recorder of the RMP behind their car, writing the summons, and Sgt. Arancibia answering questions from the civilians. After the video footage ended, PO Wdowiak issued § 87(2)(b) a summons for obstructed view and allowed them to leave.

§ 87(2)(b) provided photographs of the scene, the Guyanese flag on his car, and a video of the officers (encl. 6f-i). In many shots, the officers’ names and shield numbers are visible, and § 87(2)(b) indicated on the video which officers did what during the incident. § 87(2)(b) also provided summons § 87(2)(b) which was filled out by PO Wdowiak.

Attempts to contact witnesses and obtain video footage

The video footage provided by § 87(2)(b) indicated that the incident took place on East 96th Street immediately east of Lexington Avenue, on the south side of the street near the wall of what NYCMaps identifies as Samuel Seabury Playground. The nearest buildings are 153 East 96th Street and 161 East 96th Street across the street, 166 East 96th Street further east, and a Starbucks coffee shop on the corner (1491 Lexington Avenue). A review of Google Street View (encl. 3b-c) indicated that these buildings possibly have doormen, but no surveillance cameras were readily apparent. A TARU search was also negative.

The phone number for the Starbucks was obtained via Google search, and a call was made on May 14, 2014. Store manager Teneza Hadley stated that the store closes at 11:00 p.m. and the last cleanup crew leaves at 11:30 p.m., and they do not have any outdoor surveillance footage at that location.

NYCMaps indicated that 161 East 96th Street is owned by Raymar R.E. LLC, and a phone number was found for this organization via a LexisNexis search. A phone call was made

on May 16, 2014, and a man answered, declined to provide his name, and stated that there was no video footage or doormen, and he was out of the country at the time of the incident.

NYCMaps indicated that 166 East 96th Street is owned by ACAM Associates, but no phone number was found for this organization via a LexisNexis search.

Contacts with Detroit Police Department

§ 87(2)(b) indicated that PO Woods of the Detroit Police Department informed her that the stolen vehicle her case regards is complaint #§ 87(2)(b). A phone call was made to Detroit Auto Theft on May 14, 2014, and PO Burke confirmed that Michigan plate § 87(2)(b) is a stolen vehicle, belonging to a 2014 Dodge Charger that had recently been recovered stripped.

NYPD Statements:

Subject Officer: PO OSCAR WDOWIAK

- PO Oscar Wdowiak was § 87(2)(b) old on the incident date. He is a white male § 87(2)(b) with black hair and black eyes.
- PO Wdowiak worked from 11:15 p.m. on May 2, 2014, to 7:50 a.m. on May 3, 2014. He was assigned to sector patrol and was working in uniform in a marked vehicle with PO Aguilar.

Summons

PO Wdowiak issued § 87(2)(b) summons § 87(2)(b) (encl. 8b-c) for violation of VTL § 375-30. In the narrative, PO Wdowiak wrote, “Windshield obstructed view.”

Memo book

PO Wdowiak indicated the following verbatim in his memo book (encl. 8d-f):

12:45 a.m.: “Observed a Tan 2000 Toyota Camry driving e/b on E 96 St. + Lexington Ave w/ an object hanging from rear view mirror obstructing windshield. Ran vehicle license plate – NYS § 87(2)(b) – received caution – vehicle stolen warning; requested additional units and conducted felony car stop @ E 96 St. – Lexington Avenue. Did place occupants of vehicles in handcuffs for our safety. Upon further investigation a FINEST found plates came back to stolen car in Michigan. Occupants were uncuffed and summons issued for windshield obstructed view. Summons § 87(2)(b) driver info: § 87(2)(b) § 87(2)(b) client ID #§ 87(2)(b) DOB: § 87(2)(b) UF-250 for GLA for § 87(2)(b) § 87(2)(b) F Blk, DOB: § 87(2)(b) years old. Approx. 5’2” Approx. 180lbs; handcuffs suspect / drew firearm, not frisked or searched, no weapon found; demeanor nervous/upset – no relevant remarks.”

CCRB testimony

On August 13, 2014, PO Oscar Wdowiak was interviewed at the CCRB (encl. 8g-i).

At 12:45 a.m. on May 3, 2014, PO Wdowiak and PO Aguilar were driving eastbound on East 96th Street between Park Avenue and Lexington Avenue. PO Wdowiak observed a tan Toyota Camry in front of the RMP, and noticed what appeared to be a small flag hanging from the rearview mirror, which he believed was in violation of VTL § 375-30, prohibiting obstructed view of the windshield.

PO Wdowiak was shown the photograph of the flag taken on scene by § 87(2)(b) from the front of the car, and he indicated this was consistent with what he observed on the scene and the reasoning behind the issuance of the summons. PO Wdowiak was shown the photograph of the flag taken on scene from the back of the car; PO Wdowiak could not indicate in the photograph where the flag was, but he said he definitely saw the flag. This picture was not consistent with the view he observed. PO Wdowiak said he was in a marked SUV at the time of

the incident so he could see clearly into the car. PO Wdowiak would not have pulled them over if he did not see the obstruction.

PO Wdowiak did not immediately discuss his observation of the flag with PO Aguilar, but instead ran the plates using the OmniForce Mobile computer system in the RMP. PO Wdowiak said this is similar to FINEST, and uses the same database as FINEST as well as NCIC and other national police intelligence databases. PO Wdowiak entered the license plate sequence and state – namely, § 87(2)(b) New York – into OmniForce. A pop-up window appeared on the computer screen, reading “Warning, stolen vehicle.” At this point, the computer provided no other information about the vehicle apart from indicating it was stolen, but it featured an “OK” button which if clicked, would transmit further information about the stolen vehicle such as color, make, model, locality and date of theft, and ownership. PO Wdowiak did not click “OK” and did not further investigate, and immediately intended to stop this car. PO Wdowiak went over the air and asked for backup to assist him in the car stop, as he believed it to be a stolen vehicle.

PO Aguilar and PO Wdowiak waited behind the Toyota at a red light just before Lexington Avenue as two or three RMPs arrived as backup. As soon as the light turned green and the Toyota drove ahead across Lexington Avenue, PO Aguilar activated lights and sirens and the Toyota pulled over in a double-parked position on the south side of East 96th Street. PO Aguilar and PO Wdowiak exited the vehicle, and PO Aguilar approached the driver’s side and PO Wdowiak approached the passenger’s side. Other officers also approached the driver’s side, but PO Wdowiak approached the passenger’s side alone and in between double parked cars. PO Wdowiak drew his firearm and aimed it at the front passenger-side of the car as he approached; as it was a felony car stop for one of the seven index felony offenses he drew his firearm to ensure officer safety. PO Wdowiak had no backup in case anything happened as no other officer was on his side of the car.

As he walked to the passenger’s side window, PO Wdowiak said, “Let me see your hands.” A female sitting in the front passenger’s seat, identified as § 87(2)(b) placed her hands against the window. PO Wdowiak could not recall if he opened the door or if § 87(2)(b) opened the door. PO Wdowiak did not believe he physically pulled her out, and believed she got out of her own accord. PO Wdowiak holstered his firearm once § 87(2)(b) was out of the vehicle and handcuffed her, and PO Aguilar also handcuffed § 87(2)(b). PO Wdowiak could not recall any instructions he gave § 87(2)(b) or any words exchanged between them. § 87(2)(b) was upset but compliant, and cooperative. § 87(2)(b) asked why she had been stopped, and PO Wdowiak said the car was stolen; § 87(2)(b) then became upset. PO Wdowiak could not recall any interaction between PO Aguilar and § 87(2)(b). PO Wdowiak explained that the car showed up as stolen, and this was the reasoning behind the stop. The civilians denied that the car was stolen. At some point, Sgt. Arancibia and his operator arrived on scene.

PO Wdowiak walked § 87(2)(b) to the back of the car, and then went back to the RMP with PO Aguilar to check further. PO Wdowiak clicked through the stolen car warning to the next screen on the computer, and read the registration information, which seemed to indicate that the license plate for the stolen car was a Michigan plate. PO Wdowiak was confused, and initially thought that a car thief could have switched the license plates on the car. PO Wdowiak continued to read through the OmniForce information and realized that there were two plates with two different states.

During his interview, PO Wdowiak was shown the FINEST printout for NY plates § 87(2)(b). He indicated that the information on the FINEST search was consistent with what appeared on his screen in the RMP computer. PO Wdowiak specified that the different sections of the FINEST printout appeared on different screens, and the first thing to pop up was the stolen vehicle warning with no other information. By clicking through the screens or tabs PO Wdowiak

could read further, but the registration and state of the stolen car was not immediately available upon running the plates. PO Wdowiak did not provide a reason as to why he had not clicked through to further investigate when he first ran the plates, but reiterated that when he saw the caution pop up he believed that it was a stolen vehicle.

PO Wdowiak now realized that the stolen car warning had been in error. PO Wdowiak uncuffed § 87(2)(b) and went back to write a summons for the obstructed view. While he did so, Sgt. Arancibia spoke to § 87(2)(b) and apologized for the situation. PO Wdowiak issued § 87(2)(b) a summons for the obstructed view and spoke briefly to § 87(2)(b) and § 87(2)(b). § 87(2)(b) asked who had pointed the gun at her, and PO Wdowiak indicated that it had been him. Sgt. Arancibia told PO Wdowiak and PO Aguilar to resume patrol.

PO Wdowiak was asked about his intention upon first observing the flag hanging from the rearview mirror. When asked if he intended to pull the car over no matter what upon observing the flag, PO Wdowiak responded, "I can't remember. I don't know exactly what my initial intention was." When asked if he would have pulled the car over if the stolen vehicle warning had not popped up on OmniForce, PO Wdowiak responded, "I don't know. Maybe, maybe not." PO Wdowiak explained that he always runs the plates during a vehicle stop to see what comes up. Not all RMPs have computers, so when he is in an RMP with a computer he uses it. PO Wdowiak almost always runs the plates for vehicles when he observes infractions.

Subject Officer: PO OMAR AGUILAR

- PO Omar Aguilar was § 87(2)(b) old on the incident date. He is a Hispanic male § 87(2)(b) with black hair and brown eyes.
- PO Aguilar worked from 11:15 p.m. on May 2, 2014, to 7:50 a.m. on May 3, 2014. He was assigned to sector patrol and was working in uniform in a marked car with PO Wdowiak.

Memo book

PO Aguilar's entry in his memo book was almost verbatim of PO Wdowiak's entry (encl. 9b-d):

12:45 a.m.: "Observed a Tan 2000 Toyota Camry driving e/b on E 96 St. & Lexington Ave w/ an object hanging from rear view mirror obstructing windshield. Ran vehicle license plate #NYS § 87(2)(b) – received caution vehicle stolen warning; requested add. units and conducted felony car stop @ E 96 St. & Lexington Avenue. Did place occupants of vehicles in handcuffs for our safety. Upon further investigation Z-FINEST found plates came back to stolen car in Michigan. Occupants were uncuffed and summons issued for windshield obstructed view by PO Wdowiak #§ 87(2)(b) UF-250 prepared for GLA for male, § 87(2)(b) § 87(2)(b). Duration of stop was 20 mi. photo license shown, black male 5'10 200lbs black hair brown eyes heavy build. Handcuff suspect and other person was stopped. Officer in uniform. Male was not frisked/searched. No contraband. Male demeanor was excited and no significant remarks were made."

CCRB testimony

On August 21, 2014, PO Omar Aguilar was interviewed at the CCRB (encl. 9e-f).

On May 3, 2014, PO Aguilar was the operator in an RMP with PO Wdowiak traveling on East 96th Street in Manhattan. The officers observed a tan Toyota Camry about half a car-length in front of them, with an obstruction hanging from the rear view mirror visible to both PO Aguilar and PO Wdowiak. PO Wdowiak was shown a photograph of the Guyanese flag taken by § 87(2)(b) on scene, and he confirmed that this was consistent with what he observed. PO Aguilar could not recall whether it was himself or PO Wdowiak who made the initial observation. There was no other violation that they observed, and the officers intended to stop the car as soon as the

obstruction was observed. PO Wdowiak and PO Aguilar discussed their observation, and PO Wdowiak ran the license plates using the computer system Z-FINEST.

PO Aguilar described Z-FINEST as having the same database as FINEST. When plates are run, the officer usually puts in solely the plate number, and not the state also. There is a box to put in the state, but this is not frequently done. PO Aguilar believed that PO Wdowiak just input the plate sequence and not the state, but the events of the incident happened so fast that he was not sure. When PO Wdowiak ran the plate number, a warning popped up reading, “Caution: Vehicle Stolen.” There was no further information on this screen, apart from an “OK” button. PO Aguilar describes the output in that the officer would have to click “OK” and scroll down to see further details about the stolen car, such as the make and model and where it was stolen. Neither PO Aguilar nor PO Wdowiak scrolled down further at this point. PO Wdowiak called a 10-85 for backup as he believed it was a felony car stop. The officers waited two minutes behind the Toyota Camry before backup arrived; when more RMPs came, PO Aguilar activated lights and sirens and pulled the car over just east of Lexington Avenue on East 96th Street.

PO Aguilar exited the vehicle and approached the Toyota Camry’s driver’s side, while PO Wdowiak approached the passenger’s side; other officers also exited their vehicle. PO Wdowiak drew his firearm, while PO Aguilar did not draw his firearm; PO Wdowiak pointed his gun towards the front passenger-side of the car. PO Aguilar asked the driver (identified as § 87(2)(b)) to step out of the vehicle, and when he did so, PO Aguilar placed him in handcuffs. PO Aguilar was not paying attention to PO Wdowiak’s interaction with § 87(2)(b) but she was also taken out and handcuffed. PO Aguilar explained to § 87(2)(b) that the car showed up as stolen in their computer, and asked him, “Is this vehicle under your name? Was this vehicle reported stolen?” § 87(2)(b) was upset and confused, and claimed that the vehicle was his. § 87(2)(b) and § 87(2)(b) were excited but were not resisting and were cooperative. PO Wdowiak also said to § 87(2)(b) “The car is stolen. Is this your vehicle?” § 87(2)(b) said it was hers.

The other officers on scene guarded § 87(2)(b) and § 87(2)(b) while PO Aguilar and PO Wdowiak went back to the car to confirm the stolen vehicle caution. PO Aguilar and PO Wdowiak scrolled down further in the screen, and saw that the plate was reported stolen in Michigan, but the New York plates were valid. PO Aguilar realized that a mistake had been made. PO Aguilar was shown a printout of a FINEST search run for the plates, and confirmed that the details transmitted in this copy were consistent with what was observed on the screen. Several lines down, after the Michigan details, the New York plate details indicate that the tan 2000 Toyota Camry is registered to § 87(2)(b).

PO Aguilar and PO Wdowiak walked back to the civilians and uncuffed them. They explained that a mistake was made, and the car had appeared as stolen on their computer. PO Aguilar even walked § 87(2)(b) to the RMP and placed him inside, so he could see the stolen car cautioned. PO Aguilar and PO Wdowiak apologized. PO Wdowiak issued § 87(2)(b) a summons for the obstructed view, and PO Aguilar filled out a UF-250 for grand larceny of an auto. PO Aguilar and PO Wdowiak resumed patrol. The car stop had taken approximately thirty minutes.

Officers Not Interviewed

PO Wdowiak and PO Aguilar were the officers who ran the plates, called for additional units, and had the primary interaction with § 87(2)(b) and § 87(2)(b). It was solely their decision to stop the vehicle, and neither civilian alleged any misconduct against the six other officers who responded to the scene, nor did they have any bearing on the rationale behind the vehicle stop. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) said she spoke to her friend § 87(2)(b), but she declined to give his full name or any further contact information. § 87(2)(b) believed him to be a detective. There are nine § 87(2)(b) in the NYPD, and as such, it was not possible to identify and contact this individual for any further statements or remarks.

NYPD Documents

SPRINT and Radio Run Records

- The SPRINT records (encl. 11a-h) and the radio run CD (encl. 12a-d, enclosed in IA #58 of the digital case file) indicates that at 12:45:17 a.m. PO Wdowiak called a “rolling 16” (10-16 indicates a stolen vehicle, rolling indicates that it is in motion) and requests additional units at East 96th Street between Lexington Avenue and 3rd Avenue. At 12:47:00 a.m. dispatch indicates “no further” to location.

UF-250 Records

- Computerized UF-250 records (encl. 13a-c) indicate that neither PO Aguilar nor PO Wdowiak filled out a UF-250 in regards to this incident. The only UF-250s on May 2 and 3, 2014, were by different officers for criminal trespass. The 23rd and 19th Precinct UF-250s were analyzed as the incident occurred on the precinct border. There is no handwritten UF-250 log for the 23rd Precinct.

FINEST Vehicle Search

- A FINEST search was conducted by IAB in regards to this case (encl. 14a-f), searching for New York license plate § 87(2)(b). The record appears to return all vehicles from all states with this plate number in alphabetical order.
 - The first entry indicates “STOLEN VEHICLE” in the first line. The next lines indicate the plate sequence, the state of Michigan (indicated with “MI”), the year 2014, the VIN number, and the make and model of this vehicle –a black four-door Dodge Charger. The record indicates the vehicle was stolen April 7, 2014 in Detroit, and lists the complaint and NCIC numbers, name and phone number for the investigating officer (PO Agasha Zeno).
 - The second entry indicates that there is no record of a wanted persons file in NYSPIN (New York State Police Identification Network).
 - The third entry pertains to the plate sequence § 87(2)(b) with New York plates, and indicates this vehicle is a tan four-door 2000 Toyota Camry, registered to § 87(2)(b). The record provides § 87(2)(b)'s address and pedigree.

Other Evidence

Video and Photograph Evidence From Scene

- § 87(2)(b) took video footage on scene depicting four minutes of the incident, beginning approximately the moment they were uncuffed (attached to IA #9 of the digital case file). The video depicts Sgt. Arancibia and PO Raleigh standing and speaking to § 87(2)(b). At 1:15 in the video PO Wdowiak gives § 87(2)(b) back his driver's license and the summons for obstructed view. § 87(2)(b) then asks PO Wdowiak, “Can I ask who put the gun to my face?” PO Wdowiak replies, “I did.” § 87(2)(b) then requests PO Wdowiak's badge number and he provides it verbally. PO Wdowiak then leaves the scene in his RMP. Sgt. Arancibia explains the court fees to § 87(2)(b) and the video ends.

- § 87(2)(b) provided three photographs he took on the scene of the incident (encl. 6f-h). The first depicts the back of the vehicle, looking towards the front; the Guyanese flag hanging off the rearview mirror is not immediately visible. The second photograph depicts the front of the vehicle and dashboard, in which the Guyanese flag is visible. The third photograph is of New York license plate § 87(2)(b).

Detroit Police Department Records

- DPD Complaint Report #§ 87(2)(b) (encl. 15a-c) indicates that a vehicle with Michigan plates § 87(2)(b) was stolen on April 7, 2014, from § 87(2)(b), Detroit. This vehicle was a black 2014 Dodge Charger.
- DPD Complaint Report #§ 87(2)(b) (encl. 15d-f) indicates that on May 7, 2014, the above 2014 Dodge Charger was found in front of § 87(2)(b) in Detroit, stripped and missing the VIN, plates, tires, engine, radio, steering column, hood, and trunk.

NY State Trooper Search

- A NYSPIN search indicates that at 12:44 a.m. on May 3, 2014, an officer with tax registry number #951424 (identified as PO Wdowiak) ran a search for license plate § 87(2)(b). PO Wdowiak ran this search thrice more in close succession, at 12:48 a.m., 12:50 a.m., and 1:08 a.m. all receiving the same information each time. This same search for plate § 87(2)(b) was run again by what appears to be MISD at 10:52 p.m. on May 3, 2014, approximately twenty-two hours after PO Wdowiak ran the initial search (encl. 16a-c, e-g).
- The records indicate that PO Wdowiak also ran the driver's license for § 87(2)(b) at 1:03 a.m. on May 3, 2014 (encl. 16d).

DMV Records Search

- § 87(2)(a), § 87(2)(a) 18 USC § 2721 (a)

Status of Summons

- § 87(2)(a) 18 USC § 2721 (a)
- On August 18, 2014, a FOIL request was mailed to the DMV Main Office in Albany, NY, seeking a transcript of the trial. On September 2, 2014, DMV informed the undersigned that Ubiquis Recording was the organization from which to request transcriptions. The undersigned is checking with Operations as to the feasibility of obtaining the transcript depending on cost.
- The audio recordings of the court proceeding was requested via a DMV FOIL request on September 23, 2014, and are pending receipt.

Status of Civil Proceedings

- A notice of claim was filed with the Office of the Comptroller on § 87(2)(b) (encl. 19a-b), seeking unspecified damages. As of August 20, 2014, § 87(2)(b) of the law firm § 87(2)(b) is representing § 87(2)(b) and § 87(2)(b). No 50-h hearing has yet been held for this claim as the original one was adjourned, and § 87(2)(b) stated that the city has not called her back to schedule a new date.

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian CCRB History

- This is the first case involving [§ 87(2)(b)] and [§ 87(2)(b)] with the CCRB (encl. 2b).

Officer CCRB History

- PO Wdowiak has been a member of service for three years and this is the first complaint filed against him (encl. 2a).

Conclusion

Identification of Subject Officers

[§ 87(2)(b)] and [§ 87(2)(b)] alleged that an officer pointed his gun at [§ 87(2)(b)]'s head upon approaching the car. PO Wdowiak identified himself as the officer who did this, both verbally on video to [§ 87(2)(b)] and also in his CCRB statement. [§ 87(2)(g)]
[REDACTED]

[§ 87(2)(b)] alleged that several officers questioned him and [§ 87(2)(b)] after being removed from the car, with PO Wdowiak the primary speaker. [§ 87(2)(b)] recalled this occurring, but due to the bright flashlights and stress of the situation, she could not identify any officers except for PO Wdowiak. PO Aguilar testified that PO Wdowiak asked [§ 87(2)(b)] and [§ 87(2)(b)] questions about their ownership of the vehicle and why the vehicle was reported stolen. [§ 87(2)(g)]
[REDACTED]

Investigative Findings and Recommendations

Allegations not pleaded

PO Wdowiak and PO Aguilar consistently testified that they initially ran the plates and decided to stop the vehicle because they observed an obstruction on the rearview mirror – namely, a Guyanese flag. [§ 87(2)(b)] and [§ 87(2)(b)] acknowledged having said flag hanging and [§ 87(2)(b)] was subsequently issued a summons for this offense. No allegation of vehicle stop is pleaded as this is a summons dispute, and is under investigation by Patrol Borough Manhattan North.

PO Aguilar admitted questioning [§ 87(2)(b)] and [§ 87(2)(b)] about whether their vehicle was stolen. However, he was driving at the time that PO Wdowiak ran the plates in the FINEST system, and was acting on the information that PO Wdowiak provided to him, so the “Fellow Officer Rule” applies as PO Aguilar was relying on PO Wdowiak’s interpretation of the FINEST message.

Allegation A—Force: PO Oscar Wdowiak pointed his gun at [§ 87(2)(b)]

The following is undisputed: On April 7, 2014, a black 2014 Dodge Charger with Michigan plate [§ 87(2)(b)] was stolen in Detroit, Michigan. On May 3, 2014, [§ 87(2)(b)] operated his tan 2000 Toyota Camry with New York plate [§ 87(2)(b)] in the vicinity of East 96th Street and Lexington Avenue in Manhattan, and PO Wdowiak ran this license plate using the Z-FINEST system at 12:44 a.m., as per New York State Police records. The FINEST system returned a “caution, vehicle stolen” warning, and PO Wdowiak requested additional units for a felony car stop. Approximately two minutes transpired before the units arrived, as confirmed by radio run and officer testimony. By 12:47 a.m., all units were on scene and PO Wdowiak and PO Aguilar had pulled over the Camry.

Upon approaching § 87(2)(b) PO Wdowiak aimed his gun at her as she sat in the passenger's seat. Upon being taken out of the vehicle and handcuffed, PO Wdowiak and PO Aguilar informed § 87(2)(b) and § 87(2)(b) that they had been pulled over because their vehicle had been reported stolen. Though PO Wdowiak did not recall any details of the conversation that transpired, civilian testimony is consistent with PO Aguilar's testimony that the officers questioned § 87(2)(b) and § 87(2)(b) for approximately five to ten minutes in regards to what they believed was a stolen vehicle. § 87(2)(b) and § 87(2)(b) protested and denied that the vehicle was stolen, and stated that they have owned this vehicle for twelve years, and have never owned a 2014 Dodge. PO Wdowiak returned to his RMP to further investigate using Z-FINEST, and after reading the full report, he uncuffed the civilians, apologized, and on a video recording taken by § 87(2)(b) confirmed that he had been the officer who pointed his gun at her.

Both PO Wdowiak and PO Aguilar testified that the FINEST printout obtained by the investigation is consistent with the information they saw on the screen when the plates were run. Both officers consistently described boxes for inputting plate numbers and state, and that the first message to come up upon running the plates was a pop-up window reading "Caution, stolen vehicle," with a button to hit "OK." Upon clicking the "OK" button, the computer would list the details of the stolen vehicle, including the make, model, color, ownership, date of theft, locality of theft, and investigating officer. Scrolling down further on this screen would reveal all vehicles with the same plate from all states.

The standard case that sets standards for an officer drawing and/or pointing their firearm is *Police Department v. Gliner*, OATH Index No. 955/00 (2000) (encl. 1a-u). The court finds that an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another's personal safety. This determination must be made by assessing the reasonableness of the officer's actions in the totality of the surrounding circumstances.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B—Abuse of Authority: PO Oscar Wdowiak questioned § 87(2)(b)
and § 87(2)(b)

Civilian testimony is consistent with PO Aguilar’s testimony that the officers questioned § 87(2)(b) and § 87(2)(b) for approximately five to ten minutes in regards to what they believed was a stolen vehicle. The civilians and PO Aguilar alleged that PO Wdowiak asked questions such as, “Is this your vehicle? Is this vehicle under your name? Did you get the plates from a dealer or DMV? Do you have another vehicle?” and repeatedly stated that the car was stolen. § 87(2)(g)

Regardless of minor discrepancies, civilian testimony was consistent in that PO Wdowiak specifically said that the plates were stolen “in Michigan” and asked if they had ever owned a Dodge. § 87(2)(g)

PO Aguilar testified that he and PO Wdowiak asked more general questions about the stolen car, and neither he nor PO Wdowiak accessed the further FINEST information until after questioning both civilians. § 87(2)(g)

People v. Hollman 79 N.Y.2d 181 (1992) (encl. 1v-ae) differentiates accusatory questions from simple requests for information in that once the police officer’s questions become extended and accusatory and the officer’s inquiry focuses on the possible criminality of the person approached, the encounter has become a common-law inquiry that must be supported by founded suspicion that criminality is afoot.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date